

Regular Meeting
June 6, 2016
School Committee Meeting
Council Chambers

The regular meeting of the Medford School Committee was called to order by Mayor Burke in the City Hall Council Chambers at 7:00 p.m. Those present were Ms.Cugno, Ms. DiBenedetto, Ms. Kreatz, Ms. Mustone, Mr. Skerry, Ms. Van der Kloot, Mayor Burke and Superintendent Belson.

Mayor Burke introduced the Roberts School Chimes led by Fine Arts Teacher James Connor. The group of fourth and fifth grade students played two songs on hand chimes for the audience. Members thanked the students for the wonderful performance noting that it was a nice, calming way to start the meeting.

On the motion of Mr. Skerry that the minutes of May 16, 2016 be approved:

Vote:

Yes: 7
No: 0
Absent: 0

On the motion of Mr. Skerry that the Bills/Transfer of Funds be approved:

Voted: That the Bills/Transfer of Funds by approved.

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke
Nay: 0
Absent: 0

On the motion of Mr. Skerry that the Payrolls be approved:

Voted: That the Payrolls be approved.

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke
Nay: 0
Absent: 0

On the motion of Mr. Skerry to suspend the rules to take papers out of order:

Yes: 7
No: 0
Absent: 0

Report on Robotics Team – Botball Tournament Results

Superintendent Belson introduced Director of Math and Science Carolyn Joy to present the report. Ms. Joy reported that the Medford Public Schools recognizes Medford High School's Robotics Team for an outstanding performance at the *2016 New England Regional Botball Robotics Tournament* held at the University of Massachusetts at Lowell on April 30th. The Robotics Team under the advisorship of mathematics teacher, Ms. Barbara Chyen, proudly brought back three awards to the District.

Medford High School's Robotics Team was awarded *Second Place in the Morning Seeding Rounds*. The Team went on to receive *The Judges Award for Outstanding Team Spirit*. At the end of the day the Team took home the award for *Overall Third Place* out of seventeen teams participating from the New England region. The overall score was based on a weighted formula which combined results from three periods of *Online Documentation*, the *Onsite Presentation*, the morning *Seeding Rounds* and *Double Elimination Rounds*. A successful season was the outcome of teamwork. The students worked many long hours writing code, engineering two robots and crafting their presentation. The District extends thanks to Dr. Marthinus van Schoor, founder and president of Midé Technology of Medford for supporting the Team through five years of competition, the families for their help and Ms. Chyen for her dedication and oversight. Award certificates were presented to the team.

On the motion of Ms. Van der Kloot to accept the report and place on file:

Vote:

Yes: 7
No: 0
Absent: 0

On the motion of Ms. Van der Kloot to revert back to the regular order of business:

Vote:

Yes: 7
No: 0
Absent: 0

Community Participation

Melanie Perkins McLaughlin, Co-Chair of SEPAC presented the Community Partnership Award to the Lawrence Memorial Hospital and the volunteer coordinator for their hard work organizing volunteers including many M.H.S. students. Ms. McLaughlin continued with a PowerPoint presentation. She began by stating that SEPAC's purpose is to fulfill the directive stated in Chapter 71B of the MA General Laws which requires a school district to establish a PAC and assign both an advisory and a participator function to the PAC. Ms. McLaughlin commented that 18% of Medford Public Schools students are students with disabilities which is approximately 1 in 5 students. She discussed the 2015-2016 accomplishments and continued with what is the state of special education in Medford. She stated that the Medford Public Schools needs technical assistance because of the Level 3 rating and should pursue this through DSAC. She continued with SEPAC's recommendations.

Discussion:

Ms. Van der Kloot commented on the districtwide awareness program. She said that it is very important for students to understand their classmates but how do they deal with the confidentiality issues. Ms. McLaughlin answered that the students are not identified and they are always able to opt out. Ms. Van der Kloot asked if Ms. McLaughlin used the 4 or 5 year graduation rate? Ms. McLaughlin answered she used whatever is on the DESE site. Ms. Van der Kloot asked if we are utilizing DSAC's services? Superintendent Belson answered that we met with them and it depends on what is identified. He suggested setting up a Committee of the Whole to further discuss this. Ms. DiBenedetto commented that the report from SEPAC was excellent. It was a lot of work to produce

and present this. Ms. DiBenedetto would like to discuss working on a plan to get out of Level 3 at a Committee of the Whole. Ms. Cugno asked if all families may attend the workshops. Ms. McLaughlin answered yes absolutely and that most are free. Ms. Mustone asked if there were any other members that would like to speak. Ms. Davis, the mother of an autistic child, commented on the lack of transparency. She would like to learn about programs and workshops from her team and not through other students. There needs to be better communication. Mr. Skerry would like to have a Committee of the Whole to discuss SEPAC's concerns and budgetary issues. He would like to invite parents to hear their concerns as well. If possible he would like to schedule this in the next two weeks. Ms. Van der Kloot commented that the timing is very tight. We have budget next week and not sure where we will fit it in.

On the motion of Mr. Skerry to schedule a Committee of the Whole in the near future to discuss SEPAC concerns:

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke

Nay: 0

Absent: 0

Ms. DiBenedetto asked whether we have scheduled a sub committee meeting to discuss the fee schedule for community schools? Mayor Burke answered that it is up to the Chair to call the meeting.

Community Participation

Ellery Klein, a Roberts School parent, addressed the committee. Ms. Klein began by saying that she has great frustration with the recess policy of lack of one. She said that while we stress the importance of the whole child and music and art, recess is only fifteen minutes per day. It is often a struggle to have it being taken away due to lessons that take too long, missed homework or behavior issues. She asked what is the policy? The American Academy of Pediatrics states that recess is critical to a child's development. It is essential to rest, move and socialize and have time for unstructured activity. Ms. Klein said that she would like a recess policy put in place districtwide.

Discussion:

Ms. DiBenedetto said that this is not the first time this has been brought to their attention this year, perhaps the third. She said that recess should only be taken away as an extreme last resort. She mentioned that regarding the Columbus, they were told the policy was that there was to be three documented times before recess is taken away. Superintendent Belson said that is the policy but it is not always implemented. It was discussed at a curriculum subcommittee. The policy was issued to each school. The topic of recess is not new. Districts must meet the 900 hours of the state mandated time and recess does not count. He does not want to use this as a punishment. We will work it out and further discuss at our administrative meetings at the end of the school year. Ms. Van der Kloot recalls years ago tracking by teachers and they had to inform the principal when they withheld recess. Recess is not considered by DESE as important.

On the motion of Ms. Van der Kloot that the Medford School Committee require recess to be part of time and learning and send this motion to MASC resolution committee:

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke

Nay: 0

Absent: 0

On the motion of Ms. Mustone that the School Committee develop a clearer and better recess policy:

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke

Nay: 0

Absent: 0

Report on Department of Public Health Innovative Care Coordination Grant
Supervisor of Health Services Toni Vento presented the report. She said that the Medford Public Schools has been awarded a \$15,000 grant from the Massachusetts Department of Public Health for “Innovative Care Coordination.” Across the Medford Public Schools, chronic disease care coordination and collaboration with chronic disease specialists provided by the school nurses has been done on a case by case basis consisting of individual collaboration with the community health care providers and team meetings with building based school staff. In the last few years, student social-emotional learning needs have grown substantially, coinciding with an increase in the number of students with physician-diagnosed mental health issues (such as schizophrenia, psychosis, anxiety, depression, and bipolar disorders). Medford school nurses and counselors recognize the impact of mental health issues on school attendance, phobia and refusal and the increased number of psychiatric hospitalizations in full and partial programs. They acknowledge the need for more education and support in addressing these health needs and verbalized their desire for consultation with a Pediatric Psychiatrist/Clinical Psychologist to assist in case management for students. Our program initiative takes a novel approach to meeting the needs of students and clinical staff. We propose a multidisciplinary approach, based on a case study model, to increase communication among care providers, both in and out of school. The goals of the programs are to promote multidisciplinary and interagency collaboration around student mental health needs, decrease student visits to the nurse and/or counselor office, decrease student absenteeism and increase staff knowledge around adolescent mental health concerns. We have named this project, **“Mental Health Supervision for Clinical Staff.”** The premise of the project is to implement a consultative and clinical supervisory model; coordinated by a School Nurse (district liaison nurse) and a School Adjustment Counselor and using a Pediatric Psychiatrist/Clinical Psychologist as the clinical consultant. The co-coordinators will arrange and schedule 33 weekly in-school conferences throughout the school year divided equally for high, middle and elementary school levels. Each week a specific case study will be presented by the building school nurse and counselor, reviewed and discussed by the psychiatrist/clinical psychologist. From the discussion, the team will develop a behavioral plan of care and school accommodations. In addition, grant funding will also support 7 “drop-in” visits or phone consultations with the psychiatrist/clinical psychologist. The project co-coordinators will assess faculty knowledge levels using a pre and post test in addition to securing professional development points for participating faculty. It is expected that a wide range of mental health concerns and strategies for case management in school will be discussed over the course of the school year.

Discussion:

Ms. Van der Kloot thanked Ms. Vento for the hard work and all that her department is doing. Ms. DiBenedetto asked if the psychiatrists and psychologists will work with staff or students? Ms. Vento answered the staff. Ms. DiBenedetto asked how they will be chosen? Ms. Vento said that it will be a weekly rotating schedule for all grade levels so all will have this opportunity.

On the motion of Mr. Skerry to accept the report and place on file:

Vote:

Yes: 7
No: 0
Absent: 0

Report on State Budget FY 2017

Superintendent Belson reported that the Governor has proposed a FY 2017 budget. The House and Senate have each passed their versions. The budget now goes to Conference Committee for reconciliation of the legislative differences between the two chambers. When the Conference Committee reports out its reconciled version there will be an up or down vote in each chamber. If passed in both chambers it will go to the Governor who may veto certain line items. If so it will go back to the legislature for possible veto overrides. A final version will be sent to the Governor for enactment. This process generally is completed before the end of the fiscal year on June 30th. Negotiations will begin amid uncertainty over FY 2016 revenues which are \$260 million behind projections through April. The May benchmarks will have an effect upon the discussions.

The overall budget levels filed so far are as follows:

- Governor \$39,553,000
- House \$39,539,000
- Senate \$39,558,000

The overall state budget increase is around 3.59% (Senate is highest). According to the Massachusetts Taxpayers Foundation the original projection was revenue growth at 4.3%. However, it is only at 1.9% through April. Overall, the House and Senate provide similar support for K-12 educators. There are differences among the thirty line items that will need to be reconciled. The following represents the most important differences that could affect Medford upon enactment. The House appropriation for kindergarten is \$18.5 million which is level with FY 2016. The Senate is at \$20 million. Any reduction in this level will effect direct funding coming to Medford for kindergarten. This could be as much as \$150,000. Charter School funding is still well below formula entitlement to offset local costs for both branches. The Senate is \$5 million higher than the House. Neither addresses the actual gap which could approach \$50 million in underfunded entitlement dollars. Medford is projected to have less students in charters but could end up paying more than the current year. Non-Resident Pupil Transportation would be funded at \$1.8 million by the Senate which is \$1.5 million more than the House. This funding line helps to offset the cost of our Minuteman bus. We are working on a less expensive cost for that vehicle since our numbers are way down and a smaller vehicle might work. The Senate version puts \$350,000 into a new line item that would support the development of alternative assessments of student performance beyond test scores.

The Senate version of the Sped Circuit Breaker is about \$5 million more than the House and approximately \$10 million more than the Governor. This funding line offsets extraordinary placement in Sped. Both the House and the Senate provide \$55 per pupil minimum additional aid to schools under Chapter 70. This is \$35 per pupil higher than the Governors. It is \$30 per pupil higher than last year. The overall funding goes directly to the City treasury rather than directly to the schools. The overall funding based upon estimates of revenue and assessments is level funding. Homeless Transportation is level funded from FY 2016. This is well below need and could have an effect on our local budget depending upon actual numbers of students who require this assistance. We are lobbying our Legislators for the better allocations. We will keep you informed.

On the motion of Ms. Kreatz to accept the report and place on file:

Vote:

Yes: 7
No: 0
Absent: 0

Financial Report

Director of Administration and Finance presented the report. Ms. Velie reported that as of the writing of the report the budget is 85.69% expended. Currently six teachers are on maternity leave. Special education will utilize the planned budget. All schools are complete with the new phone. The only issue is our firewall which Allan Arena is working on a solution. Transportation and bus routes have been running smoothly for the spring months. The natural gas is under budget by 25.9% due to the warmer than typical winter but the electricity is still over budget by 4.5% as predicted earlier in the year. Buildings and Grounds has been provided the information in order to review the buildings and look for ways to monitor and correct areas of concern. Barring anything unforeseen the year should close as planned for in the FY 16 budget.

Discussion:

Ms. DiBenedetto commented that she likes seeing the report and how much is allocated to each department. She also requested that camps be advertised through the community schools and have the ability to be paid online so that we don't run into the same situation again. Ms. Kreatz asked about a bus stop issue and the possibility of moving the stop. Ms. Velie answered that they are looking into several options.

On the motion of Ms. Van der Kloot to accept the report and place on file:

Vote:

Yes: 7
No: 0
Absent: 0

Report on Public Records Bill

Superintendent Belson presented the report. He stated that The Legislature passed an overhaul of the State's Public Records Law on May 25, 2016. It is expected that Governor Baker will be signing the law on Friday afternoon. The new rules will take effect on January 1, 2017. The following information taken from the Massachusetts Municipal Association Bulletin point out the main provisions of the new law:

- Under the reform law, every city and town would be required to designate one or more employees as a “records access officer,” likely the city or town clerk and any other employee appointed by the municipal chief executive officer. The local records officer would be responsible for coordinating and facilitating the response to requests for public records, including helping people identify records being sought.
- Every city and town would be required to post in the municipal building and on the local website, if any, the name, title and contact information for the municipal records officer(s).
- Public records would have to be provided in electronic form if originally available in that form.
- Every local records officer would be required to permit inspection or provide a copy of any public record within 10 business days of a request. The request would have to reasonably describe the record being sought and be for a record within the control of the city or town.
- The person requesting a record would also be required to pay a reasonable fee. Requests would be allowed by first class mail, email or by hand.
- If a city or town does not intend to provide the record, or if the request cannot be completed within 10 business days, due to the size or complexity of a request (or the receipt of multiple requests), the city or town must notify the requestor within the 10 business day period. The response would be required to include a confirmation of the receipt of the request, identification of any records, categories of records, or any portion of a record that the municipality intends to withhold, accompanied by specific reasons for withholding, identification of any public record that is not in the possession of the local records officer, and identification of the entity that may have the public record, to the extent known.
- In the case of a request where more time is needed, the response would have to include a detailed statement describing why the “magnitude or difficulty” of a request unduly burdens the municipality and therefore requires additional time, a reasonable time in which the city or town would produce the public record – not to exceed 25 business days from the original request – and an estimate of any fees charged to produce the record.
- The response would also have to include a proposed modification of the scope of a request or an invitation to discuss a modification of the original request and a statement informing the requestor of the right to appeal to the supervisor of records or to superior court.
- If a request is so large or complex (or numerous from the same person) that the municipality is unable to comply within the 25 business day period, the city or town may within 20 business days of receipt of the initial request (or within 10 days of a determination by the supervisor of records that a record is a public record), petition the supervisor for a single 30 business day extension for “good cause.”
- When determining proven “good cause,” the supervisor must consider the need to search for, collect, segregate or examine records, the scope of redaction to prevent unlawful disclosure, the capacity of the city or town to comply without the extension, efforts undertaken by the city or town to fulfill the current request and any history of prior requests, whether the request is “frivolous or intended to harass or intimidate,” and if the public interest is served by expeditious disclosure.

- If the supervisor determines that a request is part of a “series of contemporaneous request that are frivolous or designed to intimidate or harass” (and not about government activity), then an extension may be granted for a longer period, or the city or town may be relieved of its obligation to comply with a request.
- A city or town may charge a “reasonable fee” for a public record that shall not exceed the actual cost of reproducing the record. A city or town may charge the actual cost of a storage device or materials as part of the fee and not more than 5 cents per page for paper copies.
- A requestor shall not be charged for the first two hours of work performed, except in a city or town with a population of less than 20,000. When allowed, a city or town may charge “for the time to search for, compile, segregate, redact or reproduce the record” that is not more than the hourly rate attributed to the lowest paid employee with the necessary skills to complete the work – capped at \$25 per hour unless approved by the supervisor or records. A city or town may only for segregating or redacting” if required by law or approved by the supervisor.
- A city or town would be authorized to charge for “segregating or redacting” or for costs in excess of \$25 per hour if the supervisor determines that the charge (1) “represents an actual and good faith representation” by the city or town to comply with the request, (2) is necessary to complete the request, (3) is not designed to deter access or (4) is for a commercial request intended to generate a profit. No fee would be allowed if the local records officer failed to respond to a requestor within 10 business days.
- If a city or town fails to respond to a records request or issues a response thought to be in violation of the law, a requestor may appeal to the supervisor of records, who must issue a written determination within 10 business days. Upon a determination that a violation has occurred, the supervisor must take action to ensure compliance. A requestor may appeal a decision of the supervisor must take action to ensure compliance. A requestor may appeal a decision of the supervisor to superior court.
- If a city or town does not comply with an order, the supervisor of records may notify the attorney general’s office, which may take measures to ensure compliance.
- A requestor may skip the administrative appeal process through the supervisor and file an appeal in superior court at any time to compel compliance and seek an award for damages.
- In any court appeal by a requestor, there is a statutory presumption that the record being sought is a public record, with the burden placed on the city or town to prove that it is not and should be withheld to protect the privacy of citizens or under other allowable exclusions provided by law. The court has the authority to “enjoin...municipal action” and to award attorney fees and court costs to the requestor.
- The law includes a statutory presumption in favor of the award of costs except in certain limited circumstances. If the court awards costs, the city or town would be required to waive any fees that would have been charged to comply with the records request. Even when costs are not awarded, the cost could still require that the local fee be waived.
- The new law would authorize the superior court to impose punitive damages of \$1,000 to \$5,000 if a requestor can demonstrate that a city or town did not act in

good faith when withholding or delaying the release of a public record or in assessing an unreasonable fee. In addition, the law would allow the attorney general's office to go to court at any time to ensure compliance with the provisions. If the court then orders a city or town to produce a record, punitive damages may be imposed and the city or town would be forced to waive any fees that would have been charged to comply with the records request. The Secretary of State is expected to release guidelines and regulations before enactment.

Discussion:

Ms. Van der Kloot commented that this is not only for the school department but the city as well so it should be posted on the website.

On the motion of Ms. Kreatz to accept the report and place on file:

Vote:

Yes: 7
No: 0
Absent: 0

Report on Brooks Principalship

Superintendent Belson reported that as previously reported Kevin Andrews has resigned his position as Principal of the Brooks Elementary School effective June 30, 2016. Mr. Andrews will become the Principal of the Nahant Elementary School. On Wednesday, June 1, 2016 the Superintendent and Assistant Superintendent met with both the faculty and the parents leadership team to hear their viewpoints on a succession plan. Both meetings were very informative and the conclusions were identical. There is a virtually unanimous consensus to appoint an internal person to the position. There is a strong desire for continuity and there is significant confidence in the current Assistant Principal. The Superintendent concurs with the expressions of support. Therefore unless the School Committee objects, it will be my preference to make a direct appointment to the Brooks. I will consult with the relevant union about posting, but the Superintendent has no desire to engage in a process when the result is known well in advance. Also it will allow the Brooks community to know the result before the end of the school year. There would still be two administrators assigned to that school.

Discussion:

Ms. Cugno asked if we move the Assistant Principal will a new Assistant be an internal move also. Superintendent Belson answered that they will look internally, it is good for the district and also gives the employee a chance for advancement. A parent representative acknowledged the meeting with Superintendent Belson and said that the parents are in support of appointing the Assistant Principal to the Principal's position. She stressed the importance of continuity also. Ms. Cugno asked about the vacancy at the Andrews Middle School. Superintendent Belson said that they are looking internally to fill that position also but they have to meet with Principal D'Alleva to discuss. Ms. DiBenedetto said she has watched the Assistant Principal grow in the Medford Public Schools and told the Superintendent that he has her blessing to appoint her. Ms. Van der Kloot commented that she has seen her interact with parents and the community and she is always very professional and has much support from the Brooks.

On the motion of Ms. Van der Kloot to allow the Superintendent to make a direct appointment of the Brooks Principal:

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke
Nay: 0
Absent: 0

Negotiations and Legal Matters moved to Executive Session.

New Business:

School Committee Resolutions:

Be it resolved, that the Medford School Committee express its sincere condolences to the family of Wes Foote Sr. Mr. Foote was the Medford Public Schools Foreman Carpenter for many years. His wife Connie Foote was an account clerk in the payroll office.

A moment of silence was held.

On the motion of Ms. Van der Kloot to go to Executive Session at 9:08 p.m. for the discussion of negotiations and legal matters pertaining to administrators unit, custodians, security, carpenters and non unit clerical.

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke
Nay: 0
Absent: 0

The Committee returned from Executive Session at 10:04 for the following votes:

On the motion of Ms. Van der Kloot, seconded by Ms. Cugno voted contract with Medford Security Guards (other contract provisions on file)

Salary:	FY 2016	2%
	FY 2017	2%
	FY 2018	2% mid year 1%

Vote:

Yes: 7
No: 0
Absent: 0

On the motion of Ms. Cugno, seconded by Ms. Van der Kloot voted contract with Medford Custodians (other contract provisions on file)

Salary:	FY 2016	2%
	FY 2017	2%
	FY 2018	2% mid year 1%

Vote:

Yes: 7
No: 0
Absent: 0

On the motion of Mr. Skerry, seconded by Ms. Van der Kloot voted contract with Medford School Administrators (other contract provisions on file)

Salary: FY 2016 2%
FY 2017 2%
FY 2018 2% mid year 1%

Vote:

Yes: 5
No: 2
Absent: 0

On the motion of Ms. Van der Kloot, seconded by Ms. Cugno voted contract with Non Unit Administrative Assistants – title change to Executive Assistants and salary increase as follows (other contract provisions on file):

Salary: FY 2016 2%
FY 2017 2%
FY 2018 2% mid year 1%

Vote:

Yes: 7
No: 0
Absent: 0

On the motion of Mr. Skerry, seconded by Ms. Cugno the meeting was adjourned at 10:06 p.m.

Roll Call:

Yea: 7 Cugno, DiBenedetto, Kreatz, Mustone, Skerry, Van der Kloot, Burke
Nay: 0
Absent: 0

Respectfully submitted:

Robert E. Skerry Jr.
Secretary

